

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

**COMPLAINANT SAMSUNG ELECTRONICS AMERICA, INC.’S
NOTICE OF FILING THE RESPONSE
OF THE SEOUL CENTRAL DISTRICT COURT**

Complainant Samsung Electronics America, Inc. (“SEA”), by and through its attorneys Holland & Knight LLP, hereby files notice of the Seoul Central District Court’s response (“District Court’s Response”) to SEA’s request to conduct the deposition of Mr. Yoon-Jai (“Mark”) Lee, which advises that the testimony of Mr. Lee will be taken on September 10, 2024 at 2:00 PM KST in Court Room No. 370, East Building 157, Seochojungang-ro, Seocho-gu, Seoul, Republic of Korea, Seoul Central District Court. The District Court’s Response is attached.

Under Federal Maritime Commission Rules of Practice and Procedure (Rule 142), depositions in a foreign country may be taken pursuant to a letter of request, which may be granted

on application of the party seeking the deposition without any showing that taking the deposition in another manner is impracticable. 46 C.F.R. § 502.142. SEA identified Mr. Lee, respondent SM Line Corp.'s former Senior Vice President and Chief Executive of Sales and Operations, as a person with significant knowledge of the facts and circumstances surrounding SEA's complaint.

Therefore, on November 18, 2023, Complainant SEA filed an application and Notice of Letter of Request to Take the Deposition of Yoon-Jai ("Mark") Lee ("Request Letter") pursuant to the Hague Convention on the Taking of Evidence Abroad in Civil or Commercial Matters. Dkt. No. 34. On November 21, 2023, the Presiding Officer granted SEA's Request Letter. Dkt. No. 35. On August 14, 2024, SEA received the District Court's Response dated July 26, 2024, granting SEA's request to conduct the deposition of Mr. Lee. SEA is making arrangements in connection with the taking of Mr. Lee's testimony following the notice in the District Court's Response.

Dated: August 27, 2024

Respectfully submitted,

HOLLAND & KNIGHT LLP

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: August 27, 2024

/s/ Kristine O. Little
Kristine O. Little

Notification of the time and place for the execution of the Request

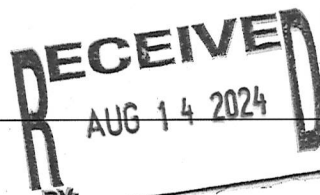
촉탁서 집행 통지서

The Competent Authority
집행 당국 주소

157, Seochojungang-ro, Seocho-gu, Seoul,
Republic of Korea 06594
Seoul Central Distric Court

Identity and address of any person to be notified
알려줘야 할 이의 신원과 주소

Samsung Electronics America, Inc.
85 Challenger Road, Ridgefield Park,
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Case No. Samsung Electronics America, Inc. v. SM Line Corporation,

Docket No. 23-01(Federal Maritime Commission)

Plaintiff : Samsung Electronics America, Inc.

Defendants : SM Line Corporation

Notice to execute the request

Identity and address of any person to be examined

: Yoon-Jai("Mark")Lee

OEK Group(Seoul) 03186 Rm904 Gwanghwamun Officia

163 Shinmunno 1ga, Jongno-Gu, Seoul South Korea

date and time : at 14:00 September 10, 2024

location : Court Room No.370, East Building

157, Seochojungang-ro, Seocho-gu, Seoul,

Republic of Korea, Seoul Central District Court

2024. 7. 26.

Judge Lim Beomseok



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